



Universität St.Gallen

Introduction to Constitutional Law and Public International Law

Prof. Dr. iur. Patricia Egli, LL.M. (Yale)
Professor for Public Law

From insight to impact.

Agenda

- Federalism
 - Overview
 - Three Levels of Government
 - Distribution of Competencies

Structural Principles

Principle of
the
Rechtsstaat

Principle of
federalism

Principle of
democracy

Principle of
social justice

Federalism

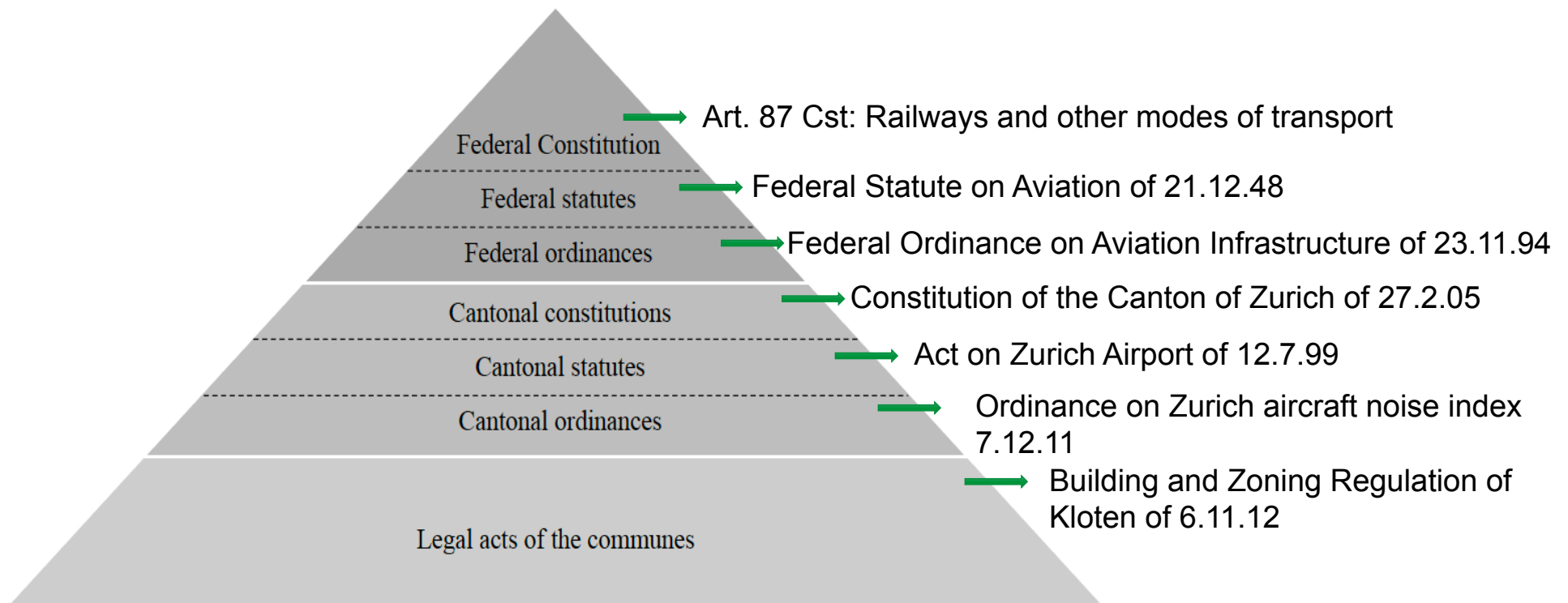
A federal system is a composite structure of two or more orders of government, combining federal shared rule and self-rule of the constituent political units.

A federal state refers to a state with a federal organization; it is composed of a federal authority and constituent political units, called e.g. cantons or states.

Zurich Airport: Legislation on different levels of Government

The construction and operation of Zurich Airport is based on a large number of federal, cantonal and communal regulations. The regulatory framework requires a sound knowledge of the federal structure of Switzerland and the extent and effect of the competencies of the different governmental levels.

Zurich Airport: Legislation on different levels of Government



Federation

The Swiss Federation possesses all three features of statehood:

1. State populace: the cantons *and* the people
2. State territory: the sum of the enumerated cantons' territories
3. State authority: the independent, supreme authority on the federal territory as expressed in the powers of the federal executive, legislative and judiciary



The Cantons

- Cantonal autonomy
- Participation at federal level
- Equality



Federal Constitution of the Swiss Confederation, SR 101

Art. 47 Autonomy of the Cantons

- ¹ The Confederation shall respect the autonomy of the Cantons.
- ² It shall leave the Cantons sufficient tasks of their own and respect their organisational autonomy. It shall leave the Cantons with sufficient sources of finance and contribute towards ensuring that they have the financial resources required to fulfil their tasks.

Cantons – Participation at Federal Level

Mandatory referendum

→ all constitutional amendments, the membership of an organization for collective security or of a supranational community and other legal acts listed in Art. 140 para. 1 Cst require the approval of both a majority of cantons and a majority of people

Optional referendum

→ federal statutes, certain international treaties and other legal acts listed in Art. 141 para. 1 Cst have to be submitted to a vote of the people when eight cantons request so

Initiative

→ a canton may submit initiatives to the federal parliament in form of a petition (Art. 160 para. 1 Cst)

Information and consultation

→ cantons have to be informed and consulted in a preparatory phase on important issues (Art. 45 para. 2, Art. 147, Art. 55, Art. 62 para. 6 Cst)

Cantons – Equality

The cantons have the same competencies as well as the same duties and obligations among one another and in relation to the federation as a whole.

Exceptions

→ six cantons (Obwalden, Nidwalden, Basel-Stadt, Basel-Landschaft, Appenzell Ausserrhoden and Appenzell Innerrhoden) have only half of a cantonal vote regarding mandatory referenda (Art. 142 para. 4 Cst)

→ they are represented by one delegate each in the Council of States (Art. 150 para. 2 Cst)

Federal Constitution of the Swiss Confederation, SR 101

Art. 50 Communes

- ¹ The autonomy of the communes is guaranteed in accordance with cantonal law. (...)

Federal Guarantees

1. The Federation guarantees the cantonal constitutions (Art. 51 Cst);
2. The Federation protects the constitutional order of the cantons (Art. 52 Cst);
3. The Federation guarantees the existence and territory of the cantons (Art. 53 Cst).

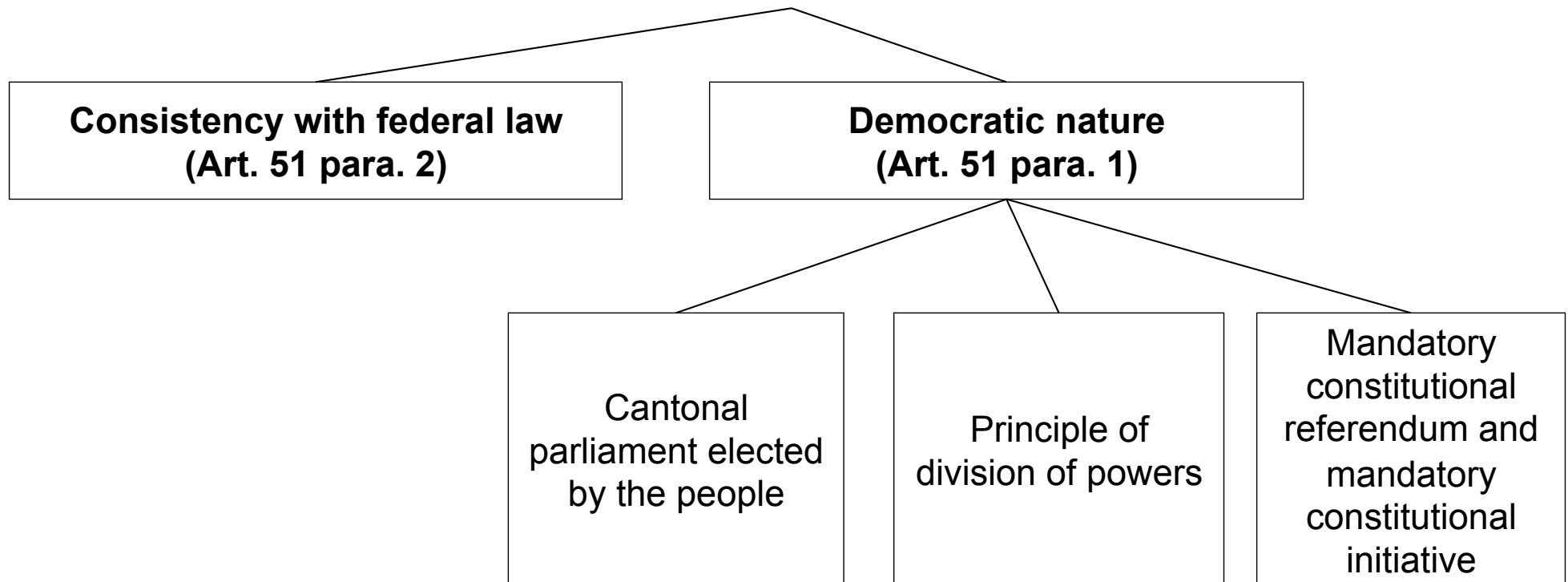
Federal Constitution of the Swiss Confederation, SR 101

Art. 51 Cantonal Constitutions

- ¹ Each Canton shall adopt a democratic constitution. This requires the approval of the People and must be capable of being revised if the majority of those eligible to vote so request.
- ² Each cantonal constitution shall require the guarantee of the Confederation. The Confederation shall guarantee a constitution provided it is not contrary to federal law.

Federal Guarantees – Cantonal Constitutions

Requirements for the federal guarantee of the cantonal constitutions (Art. 51 Cst)



Questions

Will the Federal Assembly guarantee the following provisions in a cantonal constitution?

1. According to the constitution of canton X, statutes are submitted to a vote of the people only if a third of the members of parliament requests such a referendum.
2. Canton Y only provides for a popular initiative for a revision of the constitution. If the cantonal parliament decides on an amendment of the cantonal constitution, there is no popular vote required.

Questions

3. The COVID-19 pandemic had grave short, medium and long-term consequences for children and their rights. Against this background, the parliament of the Canton of Bern just decided on a new provision that will be included in the Constitution of the Canton of Bern. The new constitutional provision guarantees children “the right to a free basic school education matching his or her abilities”.

Some citizens in the Canton of Bern doubt that such a new constitutional provision is legitimate. In particular, they refer to Art. 19 Cst. They ask you how you assess the situation and what measures may be taken.

Federal Guarantees – Cantonal Constitutional Order

The Federation protects the constitutional order of the cantons (Art. 52 Cst):

- Primary responsibility for the constitutional order lies with the canton itself.
- If the canton concerned is not able to maintain its constitutional order, other cantons must provide support.
- The Federation has to intervene when public order in a canton is disrupted or under threat and the canton in question is not able to maintain order alone or with the aid of other cantons.

Federal Guarantees – Existence and Territory

Modification of the existence of the canton	Modification in the territory of cantons	Inter-cantonal boundary adjustment
Art. 53 para. 2 Cst	Art. 53 para. 3 Cst	Art. 53 para. 4 Cst
Required is the agreement of: - concerned population; - concerned cantons; - majority of Swiss citizens and majority of cantons.	Required is the agreement of: - concerned population; - concerned cantons; - approval of Federal Assembly in the form of a federal decree.	- A treaty between the concerned cantons (with notification of the Federation) according to Art. 48 Cst. - Procedure of approval by the Federal Assembly only if a canton or the Federal Council raises objections (Art. 172 para. 3 Cst)

Questions

- In a popular vote on 28 September 2014, the people of the Canton of Basel Stadt and the people of the Canton of Basel Landschaft had to decide if the two cantons should merge. In the Canton of Basel Stadt, 54% of the people agreed with the merger proposal. However, 68,3% of the people in the Canton of Basel Landschaft rejected the merger proposal. According to a local politician, the positive vote of the people of the canton of Basel Stadt must be respected and the merger process initiated. Do you agree?
- If a full merger would not be possible, the local politician of the Canton of Basel Stadt proposes to include at least those communes of the Canton of Basel Landschaft which agreed with the merger in the popular vote. Is this possible?
- Finally, the local politicians ask whether it is possible to upgrade the former half canton of Basel Stadt to a full canton?

Distribution of Competencies

The Federal Constitution lists the federal competencies explicitly, while the cantons retain all residual powers (Art. 3 and Art. 42 Cst).

→ The assignment of the competencies in the Constitution is thus complete and conclusive.

→ In the absence of specific authorization in the Constitution for federal competencies, the task remains within the residual power of the cantons.

Distribution of Competencies - Case

A recent study has found that 80% of all garbage that is floating in the oceans around the world amounts to single-use plastic. Some members of the Federal Assembly see an urgent need for action. In order to protect the environment, they intend to declare a total ban on single-use plastic.

1. Do the federal authorities have the competency to introduce a federal provision on the ban on single-use plastic?
2. Some cantons do not want to wait until a federal ban on single-use plastic is adopted. Since 1 January 2020, for example, the sale of single-use plastic products has been banned in the canton of Geneva. The ban includes plastic bags, straws, plates and cups. The cantonal government wants to know if this cantonal measure is lawful and what happens to the cantonal measure once the federal provision banning single-use plastic enters into force.

Extent of Competency

Comprehensive competency: the Federation may enact any legal regulation for any matter pertaining to the field it considers appropriate.

Examples:

Art. 99 Monetary Policy

¹ The Confederation is responsible for money and currency; the Confederation has the exclusive right to issue coins and banknotes. (...)

Art. 100 Economic Policy

¹ The Confederation shall take measures to achieve balanced economic development, and in particular to prevent and combat unemployment and inflation. (...)

Art. 82 Road Transport

¹ The Confederation shall legislate on road transport. (...)

Extent of the Competency

Fragmentary competency: the Federation is only authorized to regulate a fragment, i.e. a certain part, of a subject matter.

Examples:

Art. 128 Direct Taxes

- ¹ The Confederation may levy a direct tax:
- a. of a maximum of 11.5 per cent on the income of private individuals;
 - b. of a maximum of 8.5 per cent of the net profit of legal entities; (...)

Art. 131 Special Consumption Taxes

- ¹ The Confederation may level special consumption taxes on:
- a. tobacco and tobacco products;
 - b. distilled spirits;
 - c. beer; (...)

Extent of the Competency

Framework competency: where the “Federation shall lay down principles” the federal competencies are restricted to passing a skeletal law, leaving the cantons enough latitude for detailed regulations tailored for their special needs.

Example:

Art. 129 Tax Harmonization

¹ The Confederation shall set out principles on the harmonisation of the direct taxes imposed by the Confederation, the Cantons and the communes; it shall take account of the efforts towards harmonisation made by the Cantons. (...)

Extent of the Competency

Promotion competency: the Federation is authorized to “support” and “encourage” efforts in areas for which the cantons are primarily responsible.

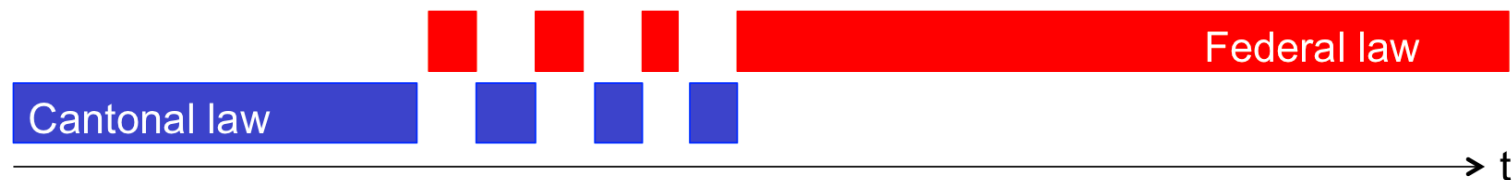
Example:

Art. 78 Protection of Natural and Cultural Heritage

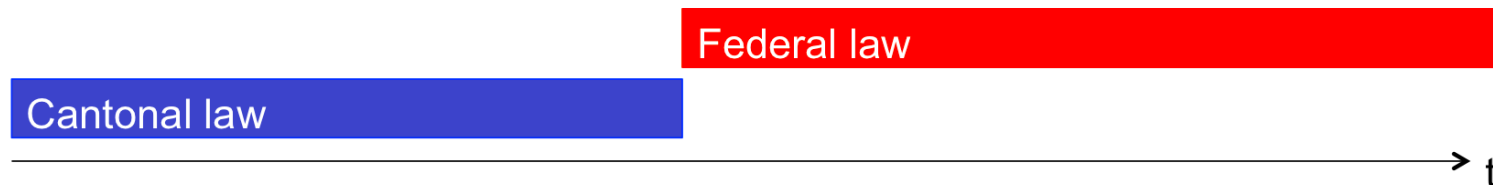
³ It may support efforts made for the protection of natural and cultural heritage and acquire or preserve properties of national importance by contract or through compulsory purchase.
(...)

Effect of the Competency

Subsequently derogating effect (standard cases)



Originally derogating effect (rare cases)



Effect of the Competency

Parallel effect (some cases)



Questions

Determine the extent and the effect of the following federal competencies:

- Art. 108 para. 1 Cst;
- Art. 87 Cst;
- Art. 71 Cst;
- Art. 58 Cst;
- Art. 67a para. 3 Cst.

Federal Constitution of the Swiss Confederation, SR 101

Art. 108 Construction of housing and home ownership

¹ The Confederation shall encourage the construction of housing, the acquisition of the ownership of apartments and houses for the personal use of private individuals, as well as the activities of developers and organisations involved in the construction of public utility housing.
(...)

Federal Constitution of the Swiss Confederation, SR 101

Art. 87 Railways and other modes of transport

The legislation on rail transport, cableways, shipping, aviation and space travel is the responsibility of the Confederation.

Federal Constitution of the Swiss Confederation, SR 101

Art. 71 Cinema

- ¹ The Confederation may encourage Swiss film production and film culture.
- ² It may issue regulations to promote the diversity and the quality of the cinematographic works that are offered.

Federal Constitution of the Swiss Confederation, SR 101

Art. 58 Armed forces

(...)

³ The deployment of the armed forces is the responsibility of the Confederation.

Federal Constitution of the Swiss Confederation, SR 101

Art. 67a Musical education

(...)

- ³ In consultation with the Cantons, the Confederation shall set out principles to help young people to engage in musical activities and to encourage musically gifted persons.

Universität St.Gallen (HSG)
Dufourstrasse 50
90000 St.Gallen
Schweiz
+41 71 224 21 11
info@unisg.ch
unisg.ch



Law School (LS-HSG)
Bodanstrasse 3
9000 St.Gallen

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